

**Judge Mosbarger – Law & Motion – Wednesday, May 27, 2026 @ 9:00 AM
TENTATIVE RULINGS**

1. 23CV00166 THEARD, DONRECKA V. BLACK, MISTY

EVENT: Plaintiff's Counsel's Motion to be Relieved as Counsel

The Court still has not yet received a proof of service and therefore the Court cannot confirm whether notice complies with California Rules of Court, Rule 3.1362(d) or *Code of Civil Procedure* §1005. The Motion is continued to one last time to July 1, 2026 at 9:00 a.m. to allow sufficient time for notice and filing of a proof of service. If a Proof of Service is not filed prior to the continued hearing date, the Motion will be denied.

2. 25CV02563 ROBINSON, ANDREW V. DEAL, MONTE ET AL

EVENT: Review Hearing (Status of Final Valuation Report)

The Court will hear from counsel regarding the status of the filing of the final valuation report and any objections/responses thereto.

3. 26CV01533 SCHWAB, ANN ET AL V. REYNOLDS, KASEY ET AL

EVENT: Petitioners' Motion for Preliminary Injunction

Good cause appearing based on the stipulation of the parties, the Court finds that Petitioners Ann Schwab; Eric Nilsson; Kate Sheehy; Jocelyn Ahern; Julia Cruse; Kelsey Simmen; Theodore Ketai; and Celeste Bailey Pace (collectively "Petitioners" herein) may file a Reply Brief exceeding the 10 page limit of Rule of Court 3.1113(d), not to exceed 16 pages. The Court will sign the form of order submitted with modification to the cited Rule of Court, to be 3.1113(d) instead of 3.113(d).

Respondent Kasey Reynolds' ("Respondent" herein) Request for Judicial Notice is granted. Petitioners Request for Judicial Notice is granted. The Court further notes that there are eleven Exhibits referenced in the "Supplemental Declaration of Peter G. Washington in Support of Petitioners and Plaintiffs' Motion for Preliminary Injunction", filed on May 19, 2026, but not included in Petitioners' Request for Judicial Notice. While such documents should have more appropriately been included in Petitioners' Request for Judicial Notice, the Court has reviewed each of the attached Exhibits.

The Court does acknowledge that the Declarations of Pablo K. Cornejo-Warner and the Matthew Kelly were not timely filed and served by Petitioners. However, the Court declines to sustain the objection as to timeliness. As to the objections to the Declarations of Pablo K. Cornejo-Warner and Matthew Kelly on the grounds that the opinions therein offered do not satisfy the threshold for expert testimony under *Evidence Code* §801(a), the Court agrees. "If a witness is testifying as an expert, his testimony in the form of an opinion is limited to such an opinion as is: (a) Related to a subject that is sufficiently beyond common experience that the opinion of an expert would assist the trier of fact..." *Evidence Code* §801(a). Here, the Court finds that it is just as competent as the expert to